

DECLARATION

声明

This Declaration is made by the undersigned (“Partner”) for NVIDIA Corporation and its affiliates (collectively “NVIDIA”), in respect of the marketing materials including but not limited to text, fonts, image, video and audio (collectively “Materials”) which Partner provides to NVIDIA for [Jinpan AI Factory Customer Story Promotion] (“Purpose”). The Materials are listed in Appendix 1 of this Declaration. Partner hereby represents and warrants that:

本声明由以下签署方（“合作方”）为 NVIDIA Corporation 及其关联公司（统称“NVIDIA”）而作出，针对合作方为【金盘 AI 工厂案例推广】（“目的”）提供给 NVIDIA 的市场营销材料，包括但不限于文字、字体、图像、视频和音频（统称“材料”）。材料列于本声明附件 1。合作方特此声明并保证：

1. To its best knowledge, the Materials and/or any part of the Materials shall not infringe upon any copyright, patent, trademark or any other intellectual property rights of any third parties.

尽其所知，材料和/或材料的任何部分均不会侵犯任何第三方的任何版权、专利、商标或任何其他知识产权。

2. If any third party materials including but not limited to font, text, image, trademark, logo, music and video (“Third Party Materials”) are incorporated in the Materials, Partner warrants that it has obtained or will obtain the third party licenses required to copy, use, transfer and distribute such Third Party Materials which are sufficient to carry out the Purpose.

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3. Partner shall indemnify, defend and hold NVIDIA harmless from and against any and all damages, liabilities, costs and expenses incurred in connection with any claim against NVIDIA that the Materials infringe upon any copyright, patent, trademark or any other intellectual property rights of any third parties.

对于因材料侵犯任何第三方的任何版权、专利、商标或任何其他知识产权而针对 NVIDIA 的任何索赔，合作方应赔偿、捍卫 NVIDIA，并使 NVIDIA 免于承担因此而产生的任何及所有损害、责任、成本和费用。

This Declaration shall be considered as an integral part of an applicable NVIDIA Partner Network Master Agreement entered into by NVIDIA and Partner, if any.

本声明应视为 NVIDIA 与合作方签订的 NVIDIA Partner Network 主协议（如有）的组成部分。

IN WITNESS WHEREOF, this Declaration has been duly executed by the authorized signatory of the Partner.

有鉴于此，本声明由合作方的授权签字人正式签署。

Partner 合作方

By 签署: _____

Name 姓名: _____

Title 职务: _____

Date 日期: _____

Appendix 1 – List of the Materials

附件 1 – 材料清单